

Use of low power equipment in the frequency band 865-867 MHz for (RFID) Radio Frequency Identification Devices (Exemption from Licensing Requirement) Rules, 2005

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Union of India - Act

Use of low power equipment in the frequency band 865-867 MHz for (RFID) Radio Frequency Identification Devices (Exemption from Licensing Requirement) Rules, 2005

UNION OF INDIA

India

Use of low power equipment in the frequency band 865-867 MHz for (RFID) Radio Frequency Identification Devices (Exemption from Licensing Requirement) Rules, 2005

Rule

USE-OF-LOW-POWER-EQUIPMENT-IN-THE-FREQUENCY-BAND-865-867-MHZ-FOR-RFID-RADIO-FREQUENCY-IDENTIFICATION-DEVICES-EXEMPTION-FROM-LICENSING-REQUIREMENT-RULES-2005 of 2005

Published on 11 March 2005

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Published vide Notification Gazette of India, Extra., Part 2, Section 3 (i), dated 11.3.2005.

1703.

Notification No. G.S.R. 168(E), dated 11.3.2005. - In exercise of the powers conferred by sections 4 and 7 of the Indian Telegraph Act, 1885 (

13 of 1885

) and sections 4 and 10 of the Indian Wireless Telegraphy Act, 1933 (

17 of 1933

), the Central Government hereby makes the following rules, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Use of low power equipment in the frequency band 865-867 MHz for (RFID) Radio Frequency Identification Devices (Exemption from Licensing Requirement) Rules, 2005.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Indian Telegraph Act, 1885 (

13 of 1885

);

(b)

"Effective Radiated Power" includes the gain of the antenna, if any;

(b)

Words and expressions used in these rules and not defined but defined in the Act and the Indian Wireless Telegraphy Act, 1933 (

17 of 1933

), shall have the same meanings respectively as are assigned to them in those Acts.

[3. Use of wireless equipment in the 865-867 MHz. - Notwithstanding anything contained in any law for the time being in force, no licence shall be required by any person to establish, maintain, work, possess or deal in Radio Frequency Identification Devices (RFID) or any other low power wireless devices or equipments, on non-interference, non-protection and non-exclusive basis, in the frequency band 865-867 MHz with maximum 1 Watt transmitter power, 4 Watts Effective Radiated Power and 200 KHz carrier bandwidth.]

[Substituted for the words "Notwithstanding anything contained in any law for the time being in force, no licence shall be required by any person to establish, maintain, work, possess or deal in Radio Frequency Identification Devices (RFID); on non-interference, non-protection and non-exclusive basis, in the frequency band 865-867 MHz with maximum 1 Watt transmitter power, 4 Watts Effective Radiated Power and 200 KHz carrier bandwidth." by Notification No. G.S.R. 564 (E) dated 30.7.2008 (w.e.f. 11.3.2005)]

4.

Interference.

- The effect of unwanted energy due to one or a combination of emissions, radiations or induction upon reception in a radio communication system, manifested by any performance degradation, misinterpretation, or loss of information which could be extracted in the absence of such unwanted energy. (2) In case where any person to whom a licence has been issued under section 4 of the Act, informs that his licensed system is getting harmful interference from any other radio communication system exempted under these rules, the use of such unlicensed Wireless equipment shall discontinue its use forthwith.

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